

A

M E A S U R E

PASSED BY

The National Assembly of the Church of England

To provide for the construction of the Constitution of the National Assembly of the Church of England referred to in the Church of England Assembly (Powers) Act, 1919, and for the construction and proof of Measures passed under that Act. [28th May 1925.]

1. The Interpretation Act, 1889, except section five thereof (which relates to the meaning of "parish"), shall apply to this Measure, and to all Measures passed by the Church Assembly after this Measure, in like manner as it applies to an Act of Parliament, and as if this Measure and those Measures were Acts of Parliament.

Application of Interpretation Act, 1889, to Measures. 52 & 53 Vict. c. 63.

2. Where by any enactment (other than the Interpretation Act, 1889) a meaning is assigned (unless the contrary intention appears) to any word or expression in all cases where that word or expression is used in Acts of Parliament, or in Acts of Parliament passed after a certain date, that enactment shall apply to this Measure and to all Measures passed by the Church Assembly after this Measure in like manner as it applies to an Act of Parliament, and as if this Measure and those Measures were Acts of Parliament:

Application of other enactments containing general rules of construction.

Provided that in all such Measures, unless the contrary intention appears—

- (a) The expression "England" shall include the town of Berwick-upon-Tweed, but shall not include any part of England or Wales to which the Welsh Church Act, 1914, applies; and

- (b) Notwithstanding anything in such last-mentioned Act, the expression "Church of England" shall not include the Church in Wales.

Meaning of
certain ex-
pressions in
Measures.

3. In this Measure, and in every Measure passed by the Church Assembly after this Measure, unless the contrary intention appears—

The expression "Act of Uniformity" means the Act of the fourteenth year of the reign of King Charles the Second, chapter four, intituled "An Act for the Uniformity of Public Prayers and Administration of Sacraments and other Rites and Ceremonies, and for establishing the Form of Making, Ordaining and Consecrating Bishops, Priests, and Deacons in the Church of England," and includes the enactments confirmed and applied by that Act to the Book of Common Prayer.

The expression "benefice" means a benefice with cure of souls and no other, and shall comprehend all rectories and vicarages with cure of souls, perpetual curacies and endowed public chapels, parochial chapelries and chapelries or districts belonging or reputed to belong or annexed or reputed to be annexed to any church or chapel.

The expression "Bishop" in relation to the diocese of an Archbishop means Archbishop.

The expression "Chancellor of the diocese" means the judge of the consistory or commissary court of the Bishop of the diocese.

The expression "church" means any church or chapel which has been consecrated for the purpose of public worship according to the rites and ceremonies of the Church of England.

The expression "the Constitution" means the Constitution of the Church Assembly set forth in the Appendix to the Addresses presented to His Majesty by the Convocations of Canterbury and York on the tenth day of May, nineteen hundred and nineteen, and laid before both Houses of Parliament, subject to such alterations and additions as have been or may hereafter be made in the said Constitution by any Act of Parliament or Measure.

The expression "Church Assembly" means the National Assembly of the Church of England as provided for by the Constitution.

The expression "Rules for the Representation of the Laity" means the rules for the representation of the laity contained in the Constitution.

The expression "Regulation" when used of a Regulation made by the Church Assembly means a Regulation making provision in regard to matters concerning the Church of England where such provision does not require Parliamentary sanction.

The expression "House of Bishops" means the House of Bishops of the Church Assembly.

The expression "House of Clergy" means the House of Clergy of the Church Assembly.

The expression "House of Laity" means the House of Laity of the Church Assembly.

The expression "Diocesan Conference" means an assembly of Clergy and Laity constituted as a Diocesan Conference in accordance with the Regulations of the Church Assembly for the time being in operation, and containing lay representatives elected in accordance with the Constitution.

The expression "Diocesan Board of Finance" means the body constituted as such for any diocese under the provisions of any Measure, and, pending the passing of such a Measure, the body recognised by the Bishop as the board of finance of the diocese.

The expression "Parochial Church Council" means a Parochial Church Council as provided for by the Constitution.

4. In the Constitution, the expression "Diocesan Conference" shall include any assembly of clergy and laity recognised by the Bishop as a Diocesan Conference of the diocese, and containing lay representatives elected in accordance with the Constitution.

Meaning of
"Diocesan
Confer-
ence" in
the Con-
stitution.

5. In this Measure, and in every Measure passed before or after this Measure, unless the contrary intention appears, references to the passing of a Measure, when

References
to the
passing of a
Measure.

[No. 1.]

*Interpretation
Measure, 1925.*

[15 & 16 GEO. 5.]

used to determine a date, shall be construed as referring to the date on which the Measure receives the Royal Assent.

Proof of
Measures.

6. The law relating to the proving of Acts of Parliament, and the contents thereof, shall, with the necessary modifications, apply to this Measure and to Measures passed by the Church Assembly before or after this Measure, as it applies to Acts of Parliament.

Short title.

7. This Measure may be cited as the " Interpretation Measure, 1925."

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

WILLIAM RICHARD CODLING, Esq., C.V.O., C.B.E., the King's Printer of
Acts of Parliament.

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
Adastral House, Kingsway, London, W.C. 2; 28, Abingdon Street, London, S.W. 1;
York Street, Manchester; 1, St. Andrew's Crescent, Cardiff;
or 120, George Street, Edinburgh;
or through any Bookseller.